UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA - SOUTHERN DIVISION

ROBERTO SANDOVAL CARILLO, Plaintiffs, vs. THE VONS COMPANIES, Inc., et al., Defendants.	Case No. 8:25-cv-00191 SRM-KES Santa Ana, California Wednesday, April 15, 2026 2:05 p.m. to 3:02 p.m.

TRANSCRIPT OF MOTION HEARING
BEFORE THE HONORABLE SERENA R. MURILLO
UNITED STATES DISTRICT COURT

Appearances:	See next page.
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WITNESSES

(None)

SANTA AN, CALIFORNIA; WEDNESDAY, APRIL 15, 2026

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(Call to Order)

THE CLERK: Calling item number 2, Case Number SACV 25-0191-SRM, Roberto Sandoval Carrillo versus The Vons Companies, Inc., et al.

Counsel, please step forward and state your appearances.

MR. KIM: Good afternoon, Your Honor. Raymond Kim for the Plaintiff.

THE COURT: Thank you, Mr. Kim.

MS. LAMAR: Good afternoon, Your Honor. Karimah Lamar on behalf of Vons.

THE COURT: Thank you, Ms. Lamar.

MR. DRURY: Good afternoon, Your Honor. John Drury on behalf of Asurint.

THE COURT: Thank you. Good morning, Mr. Drury.

You can have a moment to set up and then we can begin.

(Pause.)

THE COURT: Mr. Kim, are you ready?

MR. KIM: Yes, Your Honor.

THE COURT: Defense, are you ready?

MR. DRURY: Yes, Your Honor.

MS. LAMAR: Yes.

THE COURT: All right. Thank you.

In this matter, we're here to hear argument on the Plaintiff's motion for class certification. As the moving party, Mr. Kim, I'm happy to hear from you first and last.

Does the Defense have any preference as to who argues first or second on the defense side? No?

MR. DRURY: No preference.

THE COURT: Okay. Then, Ms. Lamar, I'll have you argue first, if you wish to.

And, Mr. Drury, you can go next.

And then I'll give the final word to Mr. Kim.

At this time, Mr. Kim, I'm happy to hear from you.

MR. KIM: Thank you, Your Honor.

THE COURT: You can remain seated, if you wish, or you can speak from the podium. However you're comfortable is okay with The Court.

MR. KIM: Okay. Thank you, Your Honor.

So, Your Honor, ultimately, this lawsuit is really an employment discrimination case. And there are three statutes at issue, two with respect to Vons and one with respect to the background check company, Asurint.

The first statute is the Megan's Law. Now, understandably, the Megan's Law, it requires convicted sex offenders to register on the California Megan's Law site. And the purpose of the Megan's Law is to enhance public safety. At the same time, the information in the Megan's Law and the registry information is not to be used for employment purposes. And I think the reason is fairly obvious. Somebody that is a registered offender, essentially, it's like a scarlet letter; right? And for them, for these individuals to really reintegrate into society, I think one thing is to be self-sufficient and find employment. And it is extremely difficult for them to do so. As a result, reintegration into society is more difficult -- right? -- increases recidivism rates as a result, so forth and so on. And so that is why --

THE COURT: Mr. Kim, I understand the public policy argument associated with the request that you're making. Specifically, though -- and I hate to interrupt your argument, I will certainly let you go back, so hold your place -- but, specifically, can you point The Court to exactly what authority you're relying upon for the assertion that Megan's Law cannot be used for employment purposes?

MR. KIM: Yes, Your Honor. So that is in

California Penal Code 290.46.

THE COURT: Okay. You can proceed.

MR. KIM: And it's clear, Your Honor, it says it's prohibited uses for employment. And so, here, with respect to class certification, I think all the requirements for Rule 23 are met. I don't think there's a question about numerosity. I don't think there's a question about predominance and commonality. At the end of the day, what we have are, at the very least, 43 individuals who applied for employment with Vons, and they were denied employment as a result of Vons' use of information from the registry. It's plain and simple.

And that fact is supported by the three notices that Vons, via Asurint, sent to the class members. And the first one what we call the FCRA 613 notice, the second is the Pre-Adverse Action notice, and the third is the Adverse Action notice. And the pre-adverse action, the Adverse Action notice clearly state we're using the sex offender registry information to deny you employment. And, as a result, Your Honor, I think predominance and commonality are met.

I think the focus of defense's opposition is Mr. Carrillo-Sandoval's adequacy as a class representative -- that's a non-issue. At the end of the day, he is an educated, articulate, very thoughtful

individual, and in my opinion, probably, too honest, which has caused some of these issues with respect to his parole; does not have an alcohol issue, if anything, he voluntarily offered to his parole officer and then to The Court to institute an abstention program just so he can be a better person, and so there's some kind of condition in place so he doesn't drink. But he had never had an alcohol problem to begin with, Your Honor.

Nothing with respect to his crime (INDISCERNIBLE) impact his credibility whatsoever. And I don't think his credibility is necessarily in question. At the end of the day what we have here is an individual, and individuals, who are really being judged by the biggest mistake that they made in their life; right? So they made a mistake, they understand that, and now, essentially, they're being perpetually canceled. So, again, when it comes to adequacy, I think we lay out very clearly in this declaration.

And then going to the next claim, which is the Fair Chance Act claim. So this requires that employers to the extent they are considering conviction histories, that they are going to conduct an individualized assessment of the applicant. And here, again, Your Honor, I think the first thing that's very obvious is Vons has submitted no evidence whatsoever that

it conducts individualized assessments. There is not a single business record to show that they conducted an individualized assessment. There are no policies and procedures. There are no employee training manuals. All of this was asked for, and, ultimately, their response was, "We don't have this information. We conducted a diligent investigation, and we don't have this information." And so they have not met their burden because at this point the burden was on Vons to show that there are individualized inquiries that would predominate, and there simply are none.

More so, Vons has relied on this procedure document, which is a 2-page Albertsons document that really just, kind of, parrots, literally, word for word of the statute of the Fair Chance Act. And they say, "Look at this Albertson's procedure document. This is what we followed." And yet, again, there is no evidence to show that they followed that document.

And to the extent they're arguing they did, well, a second common issue would be whether following that document complies with the Fair Chance Act because, again, it just copies the statute. And behind the Fair Chance Act there is the Civil Rights Division for the State of California that specifically outlines what needs to be considered as a part of this individualized

assessment. And so individualized assessment is defined by the Civil Rights Division as, quote, "a reasoned, evidence-based determination of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying applicant the position." And among other things that should be considered, that need to be considered, is --

THE COURT: Well, Mr. Kim, I think you're, kind of, getting into the merits --

MR. KIM: That's true.

THE COURT: -- as opposed to --

MR. KIM: Yes, Your Honor.

THE COURT: -- why this supports or does not support class certification at this time.

MR. KIM: Got it, Your Honor.

So, ultimately, though, I think it would come down to if they're saying that this policy document shows that there are individualized issues, the argument would be, well, okay. So assuming you did follow that for over 900 class members that are part of the Fair Chance class -- well, if they were all treated equally based on that document, does that comply? And the argument would be no. And so the class should still be certified. And, therefore, Your Honor, their position that, again, that individualized issues predominate with the Fair Chance

class is, kind of just lacks merit at the end of the day.

And then finally, Your Honor, I would say with respect to the -- sorry, one second.

THE COURT: The FCRA?

MR. KIM: With respect to the FCRA claim, Your Honor, the idea is the same. With respect to the FCRA, a credit reporting agency -- they can only provide background reports when there is a permissible purpose; right? That's what the FCRA says. They can't just willy-nilly just hand out background reports.

And, again, the credit reporting agency cannot issue background reports if they know that it will be used unlawfully. And here, Asurint is issuing background reports to Vons containing registry information clearly knowing that Vons is using it in violation of the Megan's Law. And the reason we know that is, one, there's a servicing agreement between the two parties that initially says we're not going to include any Megan's Law registry information. But, subsequently, it was amended to say, "Okay. We are going to include it. You're going to pay us $400 for," you know, "for every time that we look up the registry information." So that's Number 1.

Number 2, again, the FCRA 613 notice, the pre-adverse action notice, and the adverse action notice clearly state, "This is coming from Asurint on behalf of

Vons to prospective employees. We are going to be using this registry information to deny you employment." So it's clear they know. Now --

THE COURT: How does that inform the Rule 23 factors?

MR. KIM: So there, Your Honor, again, I think it's kind of the same group we're talking about, which is at the very least, 43 prospective candidates. And, again, these are all people who applied for employment with Vons. Asurint conducted a background search, provided a consumer report knowing that the consumer report was used in violation of the Megan's Law or just was used unlawfully.

And so we have -- I think ascertainability was one of the arguments. But, yeah, we have an objectively verifiable group of individuals that were denied employment for whom Asurint conducted these background checks.

Here, Your Honor, I think, just kind of taking a step back, I think the certifiability really should be -- it's clear, I think, to the extent they've made a number of these merits arguments. For instance, they argue, Number 1, that, "Well, the Plaintiff had also disclosed that he had this conviction." Great. Well, it shows that he's honest. And they're saying, "Well, he disclosed it, so we would have made this decision anyway

to deny him employment." Even if you would have reached that decision, you still can't use information from the registry. Then, go ahead and reach that decision without the registry information.

THE COURT: Well, okay. What if they reach it from two bases, from your client's statement and also from an improper place as you're arguing?

MR. KIM: Yeah, Your Honor. So I think there, again, that is a merits issue. But, yeah, that would be unlawful at the end of the day because you're not supposed to use the registry information, and that's that.

I think the other argument is he does not qualify as a, quote, "applicant" under the Fair Chance Act and the Fair Employment Housing Act. Well, we cited to the statute he does; right? An applicant is somebody who has received a conditional offer of employment, and just because they were working doesn't suddenly take them out of the purview of the statute. They're still considered an applicant under the Fair Chance Act.

So, again, these are merits arguments that are being made. They don't apply here. And with respect to the Rule 23 factors, the (B)(3) factors, the class should be certified.

Lastly, Your Honor, I would argue under the (B)(2) injunctive relief class, Vons does not oppose

the injunctive relief class under (B)(2). Asurint does oppose the injunctive relief class. And so injunctive relief is being sought not under the FCRA, but under the Unfair Competition law, Business and Professions Code 17200. And there, it allows for injunctive relief as well as public injunctive relief, meaning that on a go-forward basis, other members of the public who could be adversely impacted, that Asurint will take steps to ensure that it does no longer issues background reports in this context, knowing that Vons uses this information -- this registry information, the background reports -- for unlawful purposes. And so, for that reason, the (B)(2) class should also be certified.

THE COURT: All right.

MR. KIM: Thank you, Your Honor.

THE COURT: Thank you very much, Mr. Kim.

Ms. Lamar, if you need a minute before you get started, I'm happy to give you that time; otherwise, I'm happy to hear from you when you're ready.

MS. LAMAR: I'm ready.

So this case should not be certified because Plaintiff has not met by a preponderance of the evidence, any of the core requirements for Rule 23. At its core, this case really turns on individualized applicant-specific assessments that cannot be resolved on

a class-wide basis. And it's further defeated by the named Plaintiff's unique posture and adequacy problems, which bar certification. As such, I will start with the adequacy issue because that's really dispositive.

Rule 23 specifically requires a representative who can fairly and adequately protect the interests of the absent class members, and Courts in this district routinely deny certification where the representative is subject to extraordinary impeachment exposure or would cause the case to really center on their personal circumstances rather than class-wide issues. And that's exactly the issue here.

Plaintiff remains on active federal supervised release, far from being rehabilitated. He has had repeated violations, including after the filing of this lawsuit. So he's released in July of 2023, and then in August of 2024, he is found in possession of an unauthorized cellular device. And this is important because as part of his supervised and conditional release, he has to make known all the electronic devices that he's using so that he can be properly monitored. And so he was in possession of an unauthorized cellular device, and he was admonished for that.

And then months later, despite being admonished for that conduct that violated his conditional

release, a forensic exam later revealed that he was visiting prohibited porn sites that were like Chatrobate and XXXHDsex and Leap Porn and other similar sites. And this, again, was in direct violation of his supervised release and was after he was already reprimanded for having this prohibited cellular device.

And then after that, we find out that he's using some software called Data Destroyer so that he can hide his lewd and prohibited conduct. And then after all of this, he admits that he has succumbed to temptation because he was visiting websites that had prepubescent children and these nude images of adults, which, again, are prohibited by his release because of his alcohol problems. And so in August of 2025 right before discovery closed in this matter, again, he's caught viewing these nude images. And so those violations --

THE COURT: Ms. Lamar, let me ask you, respectfully, The Court manages civil and criminal cases, and I feel like you're arguing the prosecutor's role on a violation of supervised release. Tell me how -- it feels like I'm dirtying up the Plaintiff a little bit, and I understand your objection, and I'm not casting any judgment, actually, on those allegations.

Can you tie that up to how this affects adequacy of representation?

MS. LAMAR: Absolutely.

So I think the Plaintiff is uniquely vulnerable because of either that history that we just talked about. This isn't a situation where Vons is like, "Let's put a scarlet letter on any employee who's ever had a conviction." Over 1,700 people have gone through this process. They have a conviction, and we've hired them. 901 went through this process, and we found that their conviction was tied to a reason that they shouldn't be employed. So we're not putting the scarlet letter on individuals; and more importantly here, we're not trying to put a scarlet letter on him. It's just he has to be able to withstand the scrutiny of cross-examination.

The Courts have said when you have a Plaintiff that's subject to being clobbered on the stand, that goes directly to his adequacy. So he's open to credibility attacks, he's open to evidentiary disputes, and he's open to collateral issues that will really dominate this case. And so this is not a situation where we have a Plaintiff that has a dated or irrelevant conviction or has even been rehabilitated. What we have is active, ongoing, and escalating issues that go very much to his credibility. And these things are very well documented, and they're going to be unavoidable at trial. His probation officers are identifying these issues. The

Court released him, and they said, "He has a heightened risk and requires ongoing oversight. And you've been convicted, and you've done 57 months in jail for a sex offense, and then you come out, and you can't even comply with your conditional release." And so that's not something that's going to be an insignificant issue.

And, of course, we're going to raise that in terms his credibility. And so what's going to happen is that these issues are really going to take center stage and become the focus of the litigation to the detriment of this class that he is seeking to represent. And so, again, these are not isolated issues, but they go directly to judgment, directly to credibility, and his impulse control; impulse control, which he said that when he drinks, this is what causes him to go to these websites. And so it's, like, well, then, how are you going to be adequate if you are subject to these impulse controls?

He also was requested to undergo a psych evaluation. And, initially, he agreed to it, then he withdrew it, fired his attorneys, and then filed an appeal so that he would not be subject to a mental health review. And The Court denied the appeal in January of this year. So the fact that he's still abusing alcohol, I know his counsel represented that he isn't and he volunteered to this abstinence program, but that was his testimony that

he said that he succumbed to these issues when he was under the influence of alcohol. So he is still abusing alcohol only underscores his vulnerabilities and illuminates why he is inadequate. And so that risk alone, I think, defeats adequacy and requires a denial of certification on the adequacy alone.

THE COURT: Okay.

MS. LAMAR: With respect to the next issue, which is typicality. With respect to Megan's Law, typicality fails because of the same decision defense. Plaintiff is atypical because he disclosed his conviction, creating a same-decision defense which is unique to him. So whether or not plaintiff appeared on the registry, Vons would have initiated an adverse action process based on his disclosure alone.

So let's assume he never pops up on the Megan's Law registry. We're going to be in the same situation because what would have happened is he would have gone through the background check process, which is what all employees go through. We would have seen the disclosure. And Toni North (phonetic) testified to this at her deposition. And so, then, he would have went through that individualized assessment that everyone goes through that has a criminal conviction. And he would have got his pre-adverse decision, been able to talk through

his issues, and in the same way that he did, even with him being on the Megan's Law registry website, he would have provided his mitigating evidence. He did that. He provided letters that were dated back in 2017 of teachers that worked with him and why he's an upstanding citizen. And all of that would have been considered just like it was. And so the fact that he popped up separately means he's not typical of maybe a prior applicant that was exclusively on the Megan's Law website.

And the Ninth Circuit law is clear: A representative must be able to litigate unique. That "litigates unique defenses" is not typical. So Plaintiff's claim doesn't rise or fall with the same facts that the other putative class members would have. And, similarly, with respect to the Fair Chance Act claim, Plaintiff was already working when the background check was conducted. He was an employee. This wasn't a conditional offer of employment. He was actually employed, receiving a check, and the Fair Chance Act only applies to applicants, not employees. And so, again, he's not subject to the same legal and factual defenses that will be shared by the rest of the putative class members. So that puts him in a fundamentally different posture than the rest of the putative class members.

And Rule 23 does not permit a

representative who stands outside of the class that he is seeking to represent to meet the typicality requirement. So importantly, typicality is not met when the representative here has unique circumstances that require him to address a different defense, which here would be he was an applicant -- I mean, he was not an applicant.

With respect to commonality, the turning point to commonality is really set forth in the Dukes case, which is controlling here. And again, with respect to Megan's Law, contrary to what his counsel is saying, which is that the Megan's Law can't be relied on in any matter, that's just not what the statute says. Penal Code 290.46(j)(1) specifically says that the statute can be relied on to protect persons at risk. And that's important because I think to suggest that Vons is not in a situation where they can protect persons at risk when the code specifically says that it can would just have an absurd result. There's clearly going to be situations where people present a risk to the community. And, again, it conducts an individualized basis.

So we're not saying here that under no circumstance can anyone not work at Vons if they have a sex offender conviction. And, in fact, this SOP that, yes, it does have Albertson's logo on it because that SOP is used for all of the different entities that fall under

Vons, but another entity that uses that SOP and that Toni North adjudicated -- again, looked at whether or not this person was qualified -- she allowed him as a sex offender to work in a position at a Safeway store. And the reason why that's significant is because this SOP that's at issue here that we're claiming that we didn't follow or that it would preclude people who are registered sex offenders from working, it's just not true. It's, again, here, Toni North, who is adjudicating these issues, she's looking at what the offense is and where this person is going to be placed.

And so when she is using the statute to determine who she needs to protect that she's identified as persons at risk, what she's doing is -- and she testified that she's analyzing the job position. You know, here he's a deli clerk. She's looking at the work environment. Here, he could be working with minors. He could also be going to the restroom and be in the restroom with a minor. And she's looking at the nature and recency of his offense. Again, he was just released in July of 2023 and had policy violations of his conditional release. And then she's looking at any kind of mitigating information that's provided.

And so she had been doing this for well over 20 years. This is not something that she's new to or

is not familiar with, and so she used not only her judgment and experience but also the SOP to, kind of, go through this process, and she concluded that given that this is a public-facing customer-facing position, that his recent convictions posed a risk to these people that she's trying to protect. And I think it can't be overlooked that when he was released on this conditional supervision, that he was specifically told that he cannot be around unaccompanied minors and that the person who is supervising him has to be aware of what that conviction is.

So it's not enough to say, "Okay. I was working, and there was somebody over the age of 18 that was there." And so that's not a concern. No, that person has to be informed of what the actual offense was and then be monitoring him. And that's a significant burden to put on Vons to have somebody that's hired specifically to monitor just him and track his whereabouts to make sure that he is not around unaccompanied minors. So, again, with respect to commonality, his situation is not common at all to the putative class. And so, these are not abstract policy questions here. These are, really, individualized determinations.

And similarly with the Fair Chance Act, the Fair Chance Act is individualized by design. And so I

know there was comments that well, we were relying on Albertson's SOP, and it's an Albertson's document. Tony testified, Ms. North testified that she relied on that to adjudicate Mr. Carrillo's situation. And, again, that process is individualized by nature. Yes, the SOP does follow the law, and that was very intentional so we can make sure that our employees are following the law. So to suggest that that's a problem, I think it's just disingenuous because I don't know what else it should be following. It should follow and track the law very closely so we can make sure we're hitting each of those elements.

And, here, when we're doing the individualized assessment under the Fair Chance Act, you're looking at what is the offense? You're looking at the time that has elapsed. You're looking at the job duties. And importantly, the statute does not require that any of this be in writing. The absence of a policy does not create individual liability. There is no dispute that we went through the process because in the records we have the pre-adverse decision, inviting him within the specified time period to provide mitigating information, and that mitigation information was clearly looked at, and then the adverse decision was made. So we went through all those steps. And so liability turns on what happens

in each individual case.

In order to adjudicate this particular issue, you're going to have to go and look at all of those individuals and see how the process was followed. And that's going to require a bunch of little mini trials. So at most, Plaintiff has identified a common question. But Rule 23 requires common answers capable of resolving with one stroke. And that standard is simply not met here.

Moving on to predominance, again, predominance overwhelms the individualized issues in this case. So even if for some reason The Court finds that Rule 23 is satisfied, which again it's not, certification still fails under 23, which is far more demanding than commonality. And so, again, under the Megan's Law, The Court would need to determine for each class member whether registry information was used and whether it was used to protect a person at risk. And that inquiry cannot be tried on a class-wide basis without hundreds of mini trials.

And, similarly, under the Fair Chance Act, each putative class member's claim will require an examination of their specific conviction, the timing of that conviction, the particular job that they applied for, mitigating information, the individualized assessment that was performed. So, again, predominance would be defeated

here where liability is going to turn again on very fact-specific and applicant-specific facts. And the Ninth Circuit has reaffirmed that under this circumstance, individualized issues predominate, and that's another reason to deny class certification.

And with respect to injunctive relief, Vons does oppose injunctive relief, and it's improper. Again, plaintiff is seeking injunctive relief, but he can't show a uniform policy that was applied in the same way to all class members. As I've already said, that's going to require individualized inquiries. Injunctive relief, again, would require really looking into each individual and figuring out whether the process was followed. And so for that reason, injunctive relief is not proper.

THE COURT: Thank you, Ms. Lamar.

MS. LAMAR: You're welcome. Thank you.

THE COURT: Thank you.

Mr. Drury, do you need a minute or are you ready to argue?

MR. DRURY: No. I'm ready, Your Honor. Thank you.

THE COURT: You may proceed.

MR. DRURY: Thank you.

First, I agree with Ms. Lamar regarding

her argument as to the Rule 23 factors. I won't rehash all of that here as far as Asurint goes. And, frankly, that's because, with respect to Asurint, this is a very simple case and a very straightforward analysis of a class certification and why it should be denied.

By the nature of Plaintiff's lone claim against Asurint and the class definition that they seek, if Plaintiff's claims fail or are not certified against Vons, then the same is true for Asurint. Plaintiff's lone claim against Asurint is entirely dependent on what Vons allegedly did, which makes this a very odd claim and really trying to fit a square peg into a round hole, I think.

The one claim against Asurint in the case is under Section 1681(b)(1) of the Fair Credit Reporting Act. And that section is pretty clear in what it requires. It only requires a consumer reporting agency to obtain a certification, or a promise, from a user of a Consumer Report. There's a couple of requirements. Here, the issue is that the end user of the report won't use any information in violation of equal employment opportunity laws. Vons absolutely certified to Asurint that it would not use any Consumer Report information in violation of any EEO law. There's no dispute that Asurint obtained that exact certification from Vons. I believe it's

Exhibit A to the declaration that we submitted. That should start and end the case, as far as Asurint is concerned.

The underlying FCRA claim just cannot be proven with common evidence because the statute defines Asurint's obligation extremely narrowly, as I just defined it. They just need to obtain the certification. So Plaintiff's purported common question is what Asurint knew. That's nowhere in the statute. And it also doesn't say anything about Asurint being liable because it's not even tied to the underlying claim, which plaintiff is asserting against Asurint, the 1681b(b)(1) claim. It's instead tied to Vons purported and presumed liability, which, again, is based on an incorrect reading of what is a pretty clear statute, the Megan's Law, which says you absolutely can use Megan's Law information when it's to protect people.

And so, again, the common question is what did Asurint know? And knowledge -- let's say Asurint had any knowledge, but first of all, under 1681b(b)(1), knowledge of downstream employer conduct is not part of that analysis. And as Ms. Lamar went through and as I stated before, it is allowable to rely on Megan's Law information anyway. So the fact that Asurint might even be aware that they might be using it, even though Asurint

plays no role in this process of making employment decisions does not mean that Asurint can have any liability here.

Plaintiff is basically asking The Court to certify a class based on a question that just doesn't lead to liability under 1681b(b)(1). And, in fact, there's no case law -- none was cited by Plaintiff and none exists as far as I know or any authority -- suggesting that Asurint has to do anything more than obtain the certification. It doesn't need to monitor whether Vons actually complies with the law. It doesn't need to audit Vons. It doesn't need to participate in employment decisions, and it doesn't. It doesn't need to inform itself, Asurint, as to all the requirements and nuances of every conceivable EEO statute in the entire country. Asurint's operating on a nationwide basis.

Plaintiff would have Asurint basically looking over Vons' shoulder and -- or any employer's shoulder -- and say, "Well, this Equal Employment Opportunity Law in South Carolina, we need to know about that, too. Asurint is the consumer reporting agency or, otherwise, the certification might not be good." No, the only thing that needs to happen under 1681b(b)(1), the only claim against Asurint is that Asurint gets the certification, Vons' promise, that it won't use the

information in violation of EEO law, which that's all it needs. By the way, Vons' promise came true because Vons is not using it in violation of EEO law as far as any of the evidence that we've seen in the case.

So all this, it just goes to the heart of the Plaintiff's FCRA class definition, which directly ties Vons alleged unlawful use of sex offender information to whether to certify a class against Asurint. That is something that in all the class certification motions I've been involved in, I haven't seen it, where one party's liability is dependent on knowledge of what some other party did, even though that knowledge isn't part of the statute that the plaintiff is actually suing under. And even though there's reasons why, again, sex offender information is absolutely something that employers in California can use.

So, again, the Plaintiff's counsel, I think, incorrectly assumes that such use is a, per se, unlawful violation. We've gone through the reasons why that's just not the case. Vons' counsel has explained the circumstances under which it's perfectly lawful to take action on somebody.

And here, again, going to typicality, I'll just touch base on that again really quick. It wasn't even just the sex offender record on there. It was also

the fact that he self-disclosed his conviction, which is something separate and apart. So, I mean, the FCRA class definition just fails. It requires plaintiff to show that Asurint, itself, is using or somehow knew that Vons violated the law. I mean, how can Asurint know if Vons was violating the law when it was never Plaintiff's employer -- that is, when there are specific allowances for employers using sex offender information, when Asurint is not making the employment decision, when Asurint is not obligated to know the contours of any EEO laws for its customers' decision, when an insurer doesn't participate in the individualized assessment process.

Again, this is just the phrase, "individualized assessment process," and I won't dwell on this, but it does not, as Ms. Lamar said, it does not lend itself to class certification when there absolutely has been evidence that in 1,700 cases, they've applied this individualized assessment process to then go on to hire people. At most, Plaintiff in this case points to two consumer notice documents to argue that Asurint somehow participated in employment decision or knew or should have known that Vons was supposedly violating the law despite that certification that it gave to Asurint.

And the notice documents are really just red herrings, and I think it further shows just how weak

Plaintiff's claims are. The first is Plaintiff points to a 613 notice. This is under 15 U.S.C. 1681k(a)(1). and it's just a document the FCRA, generally, requires be sent by the CRA to the consumer whenever public record information is being reported. In this case, they were reporting public record information, they sent this notice. It doesn't impart any knowledge as far as what Asurint knows Vons is going to be relying on. And, again, even if that was the case, Vons is within its rights under Megan's Law to conduct an individualized assessment process and choose to use that.

And then Plaintiff also points to the pre-adverse action notice. That's under 15 U.S.C. 1681b(b)3 of the Fair Credit Reporting Act. Again, that's an employer obligation, and it's sent when Vons decides that a criminal record may be disqualifying. The testimony from both the Vons corporate rep and Asurint's corporate rep shows that Asurint plays no role in deciding when this notice is sent at all. Asurint is just performing an administrative service as the background screening provider for Vons, and that by sending it on Vons behalf, and it says that right there in the notice and after Vons decides that a record may be disqualifying. And, again, the notice itself says, "Vons is making the decision. Don't contact Asurint." They didn't make the decision.

THE COURT: Don't shoot the messenger.

MR. DRURY: Yes.

So, I wanted to give that background of what I really feel is, just I said it, at the beginning, but putting a square peg into a round hole. There's been no case at all that I'm familiar with where liability under the FCRA would follow with these facts and under this section and no obligation beyond just obtaining the certification. So I'm happy to answer any questions as far as the Rule 23 factors because, obviously, we're here on a class certification motion, but I do think Ms. Lamar went through each of those, and I think as I said in the beginning, Asurint, to the extent I think it's been established that class cert should be denied as to Vons, the same reasoning would apply to Asurint, who's further attenuated from any of this. So that's all I have, Your Honor.

THE COURT: Thank you, Mr. Drury.

Mr. Kim, as I mentioned, as the proponent of the motion, you certainly have the last word. I would encourage you to focus any reply argument that you have on the Rule 23(a) factors primarily. And, also, you don't need to repeat anything that is in your reply briefs.

MR. KIM: Okay.

THE COURT: Because I did review the briefs, and

I have it there in writing. But if there's anything that you wish to address that was mentioned by either Ms. Lamar or Mr. Drury, I'm happy to hear from you.

MR. KIM: Thank you, Your Honor.

THE COURT: You can also submit on your papers if you want, but --

MR. KIM: If I can just add a couple points, Your Honor. I think what we heard a moment ago are, kind of, a buffet of merits arguments. And so and I think these arguments are addressed in the reply brief. I think one argument that --

THE COURT: Let me say one thing.

MR. KIM: Yes, Your Honor.

THE COURT: I think there were some merits arguments, but I think they did do a fair job and specifically, Ms. Lamar, because Mr. Drury kind of relied on her argument in this regard, she did tie them to the 23(a) factors.

If there's anything that I want to hear from you, specifically, it would have to do with his adequacy as a class representative, if you want to focus your argument. Obviously, you can cover anything you'd like, although like I said, I have reviewed your reply briefs. You don't need to repeat anything that is there, and I'm not going to rule on this right now. I'm going to

take it under submission, in any event. So if there's anything that you want to address there, you're welcome to.

MR. KIM: Thank you, Your Honor.

With respect to adequacy, I recognize that this is not a popular case; right? And my client is, obviously, he's an easy target. At the same time, I think we do have to look at, Number 1, that his criminal history is the very reason why we are bringing this lawsuit. And his criminal history is the very characteristic that makes him a member of the classes.

And now they are trying to use that same criminal history to say, "Well, he's not adequate." But again, adequacy looks at, Number 1, whether there's a conflict between the class rep and the class members, and here there is no conflict identified and none exist. Number 2, the question is whether he'll represent the class vigorously. There's no argument that he will not and has not, and he clearly has. He's produced very uncommon in a plaintiff-side class action -- he produced nearly 600 pages of documents. He spent hours upon hours gathering those documents, preparing for the deposition. He's always been readily available to discuss this case.

With respect to all these accusations about these parole violations, it's addressed all in

detail in his declaration in support of the reply brief. He was very upset to read the opposition and so there really was a question of, "Do we want to overemphasize that?" Because it really is nothing, but let's address it; right?

And as The Court mentioned, yeah, it's almost as if these are arguments that a prosecutor should be making, not a defense counsel in a Fair Chance Act Megan's Law claim. But he does address them. For instance, I would like to talk about this quote, "unauthorized phone." It was authorized.

THE COURT: I don't want to get into that.

MR. KIM: Okay, Your Honor. Yeah. So it is in the papers and so --

THE COURT: No, let me redirect you real quick, Mr. Kim, just so that it's clear for you. I'm very familiar with criminal law. I understand, and I think I'm pretty good at compartmentalizing, kind of, the moral objection that people have to a person's conduct from, I think, what Ms. Lamar's argument was. She focused on the conflict between your client and the rest of the class based on his conduct leading to issues -- I think she mentioned credibility, moral turpitude, which might be different from other people in the class, I think was her point.

So I'm only considering that in that regard. Is there a conflict? Is he a good class representative? Is he adequate? If you want to focus your argument, I would start there, but don't be concerned that I'm going to just, kind of, get flooded by criminal conduct. And --

MR. KIM: Yes, Your Honor.

THE COURT: I'm not. I'm sticking to the things that I'm supposed to consider here. And if I would direct your argument in any direction, it would be toward that.

MR. KIM: Thank you, Your Honor.

I do feel like the accusations somewhat do tie to credibility because they're, essentially, calling him a liar. In the declaration, he addresses these issues. Again, the phone was not unauthorized. He didn't delete anything. He did not use Data Destroyer. He submits evidence to support all of that.

THE COURT: Certain types of crimes are defined as moral turpitude crimes, which, by definition, allow a jury to question somebody's credibility.

MR. KIM: Yes, Your Honor.

THE COURT: Whether they're watching porn or not, I mean, that's just --

MR. KIM: And here, again, I feel like there's obviously an overlap between class and merits. But when

we're talking about the crime at issue, as well, well, it was possession of explicit materials of a minor; right? And, again, not to understate or minimize the crime, but at the end of the day, there was no direct person that was harmed mentally, physically, emotionally, or in any way. And it's not a crime of moral turpitude. It does not go to his credibility. And --

THE COURT: Well, wait. It does go to his credibility because a moral turpitude crime under the evidence code is something that allows a jury, for instance, to question the credibility of that person just based on the nature of the crime. That's something that's very common in criminal law. So I'm not passing judgment and looking even into the merits. I think I'm looking at her argument, specifically, with does this issue of credibility jeopardize him as a class representative? If you want to address that, you may.

MR. KIM: Yes.

Again, I would say no, because what is there to argue about his credibility? Because of the crime that he convicted, which makes him a class member to begin with? I guess maybe there's where my confusion lies. Because he possessed explicit material of minors, does that make him less credible than the next class member?

THE COURT: I don't know who else is in the class.

MR. KIM: Your Honor, clearly, I would argue no; right? And I don't think that's what they were arguing. I think they were saying post-release during his parole, he's done things that makes him less credible.

One, I would say on MIL, probably try to exclude all of this, but that's beside the point. I think right now, with respect to adequacy, again, the primary focus really should be whether there are any conflicts between him and the class members and whether he'll represent them vigorously. And the question is yes and yes.

Now, has his credibility really been challenged? I would say no. There is nothing in the record to challenge his credibility. And, again, I would ask that The Court just review his declaration where he addresses all of the issues and accusations that are raised by Vons and Assurance.

I think there was another question of whether -- I think this, again, overlaps with merits, but they're saying, "Hey, protecting person at risk." Well, they're all at risk -- right? -- according to Vons. Toni North testified, "Yeah. Every person is a person at risk." And at the end of the day, their decision to deny

every person that had registry information in their background report, well, again, that does not defeat commonality because she testified they didn't hire a single person that had registry information in their background report.

Now, they keep saying, well, now going to the Fair Chance Act claim, they've identified 900 people who were denied, but they said, but there were 1,700 people in total so there must have been about 800 that passed. Where's that evidence of this 800? Where is this evidence of the 800 with a conviction history that were given an individualized assessment and were passed and hired? There is no evidence of that.

I've seen documents from other employers; right? They have business records showing who reviewed what, when -- right? -- who they spoke with. Employers will interview candidates to say, "Okay. Well, there's a conviction here. Let's talk about this." There's none of that. There's absolutely no evidence except this self-serving testimony saying, "Look at this spreadsheet," again, which wasn't even authenticated, which says, "Hey" -- and we haven't seen a spreadsheet with 1,700 names either, so it's kind of like, where's this information coming from?

The burden, at this point, is on Vons and

Asurint to show that common issues do not predominate, and they have not been able to do that. And, again, this person-at-risk argument, that is not going to save the day.

THE COURT: Okay. Anything else, Mr. Kim?

MR. KIM: Your Honor, one last thing.

I think Ms. Lamar did mention with respect to the (B)(2) injunctive relief claim that there is no uniform policy and therefore the (B)(2) class cannot be certified. On the Megan's Law, I would agree that they don't have a Megan's Law policy. They've produced nothing to say, "Hey, we should not consider Megan's Law information."

With respect to the Fair Chance Act claim, the only document they produced is from Albertsons, who during the deposition and through discovery, they're saying, "Hey, we have nothing to do with Albertsons," but they are relying on their document, and that is their uniform policy. And if that is the uniform policy that they relied on, the common question is whether or not that policy makes their conduct lawful or unlawful.

That's everything for Plaintiff, Your Honor. Thank you.

THE COURT: Thank you, Mr. Kim

All right. The Court's going to take

this matter under submission. Thank you all for your professionalism and for your preparedness. That'll conclude the proceeding at this time.

MR. KIM: All right.

MS. LAMAR: You're welcome. Thank you, Your Honor.

MR. DRURY: Thank you, Your Honor.

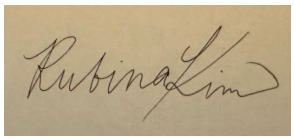
THE CLERK: All rise.

(Proceedings concluded.)

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TRANSCRIPTIONIST'S CERTIFICATE

I certify that the foregoing is a correct transcript from the electronic sound recording of the proceedings in the above-entitled matter.



_____ May 27, 2026

RUBINA KIM Date

FEDERALLY CERTIFIED TRANSCRIPT AUTHENTICATED BY:

/s/Ann Bonnette

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